

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the documents attached as Exhibits 1 and 2 to the RFAs, pursuant to RFA Nos. 12 and 13, are DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

11. 9:00 AM CASE NUMBER: L25-05638

CASE NAME: WELLS FARGO BANK, NA VS. JUSTIN CLEVELAND

***HEARING ON MOTION FOR DISCOVERY MOTION FOR ORDER DEEMING TRUTH OF MATTER PLN REQUEST ADMISSIONS FILED BY PLN ON 09/09/2025**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

The Court was advised at the Case Management Conference on November 17, 2025 that the matter has resolved by settlement agreement. The parties were to advise if this motion is dropped. **PARTIES TO APPEAR** unless the moving party requests the matter be dropped from calendar.

12. 9:00 AM CASE NUMBER: MSL20-04573

CASE NAME: AMERICAN EXPRESS VS LEA

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/02/2025**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Enter Judgment on September 2, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement filed on September 6, 2022 (the "Settlement Agreement"), the terms of which included payment by the defendant Harold Lea ("Defendant") in the amount of \$14,832.89, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 2, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for said amount plus costs in the event of a default. *Id.*, **Exhibit A**, ¶10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration,

¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$1,854.89 due and owing, plus costs of \$570.44. See Supporting Declaration, ¶7; see also Memorandum of Costs filed September 2, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,854.89, plus costs of \$570.44, for a total of \$2,425.33.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

13. 9:00 AM CASE NUMBER: N25-1152
CASE NAME: FORWARD FINANCING LLC VS. THOMAS GOWANS
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY:
TENTATIVE RULING:

Petitioner Forward Financing LLC ("Petitioner") filed a Petition to Confirm Contractual Arbitration Award on April 4, 2025 (the "Petition to Confirm"). The Petition to Confirm was set for hearing on July 29, 2025.

The Court previously continued the matter to November 25, 2025, 9:00 a.m. in Department 34 of the Court because no proof of service appeared of record on the Court's docket. Petitioner had not established that service was done in accordance with Code of Civil Procedure section 1290.4.

On July 30, 2025, Petitioner filed Proofs of Service of the Petition to Confirm and related documents as to TGLG, Inc., d/b/a Bloomin' Blinds of Contra Costa, and Thomas Gowans, an individual ("Defendants"). Notice of the continued hearing date on the Petition to Confirm was also given. See Notice of Hearing filed and served August 7, 2025.

Background

An arbitration was conducted between the parties as set forth in the Award of Arbitrator